

An Act

ENROLLED HOUSE
BILL NO. 3581

By: Lepak, Woolley, and Adams
of the House

and

Gollihare of the Senate

An Act relating to crimes and punishments; amending 21 O.S. 2021, Section 1312, as amended by Section 10, Chapter 486, O.S.L. 2025 (21 O.S. Supp. 2025, Section 1312), which relates to punishment for riot; creating certain felony offenses; providing for penalties; amending 51 O.S. 2021, Section 155, as amended by Section 21, Chapter 228, O.S.L. 2022 (51 O.S. Supp. 2025, Section 155), which relates to exemptions from liability; modifying exemption; updating statutory reference; updating statutory language; and providing an effective date.

SUBJECT: Crimes and punishments

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 21 O.S. 2021, Section 1312, as amended by Section 10, Chapter 486, O.S.L. 2025 (21 O.S. Supp. 2025, Section 1312), is amended to read as follows:

Section 1312. Every person guilty of participating in any riot is punishable as follows:

1. If any murder, maiming, robbery, rape or arson was committed in the course of such riot, such person is guilty of a Class A1 felony offense punishable in the same manner as a principal in such crime;

2. If the purpose of the riotous assembly was to resist the execution of any statute of this state or of the United States, or

to obstruct any public officer of this state or of the United States, in the performance of any legal duty, or in serving or executing any legal process, such person shall, upon conviction, be guilty of a Class B3 felony offense punishable by imprisonment in the custody of the Department of Corrections for a term not exceeding ten (10) years and not less than two (2) years;

3. If such person carried at the time of such riot any species of firearms, or other deadly or dangerous weapon, ~~or was disguised,~~ such person shall, upon conviction, be guilty of a Class B3 felony offense punishable by imprisonment in the custody of the Department of Corrections for a term not exceeding ten (10) years and not less than two (2) years;

4. If such person directed, advised, encouraged or solicited other persons, who participated in the riot to acts of force or violence, such person shall, upon conviction, be guilty of a Class B1 felony offense punishable by imprisonment in the custody of the Department of Corrections for a term not exceeding twenty (20) years and not less than two (2) years; ~~or~~

5. If such person commits any assault and battery in the course of a riot, such person shall, upon conviction, be guilty of a Class D2 felony offense punishable by imprisonment in the custody of the Department of Corrections for a term not exceeding two (2) years;

6. If such person commits any aggravated assault and battery in the course of a riot, such person shall, upon conviction, be guilty of a Class B1 felony offense punishable by imprisonment in the custody of the Department of Corrections for a term not exceeding ten (10) years;

7. If such person willfully damaged, destroyed, vandalized, or defaced any structure, building, or office space in the course of a riot, such person shall, upon conviction, be guilty of a Class D3 felony offense punishable by imprisonment in the custody of the Department of Corrections for a term not exceeding two (2) years if the damage was less than One Thousand Dollars (\$1,000.00) or shall be guilty of a Class D1 felony offense punishable by imprisonment in the custody of the Department of Corrections for a term not exceeding four (4) years if the damage was more than One Thousand Dollars (\$1,000.00);

8. Every person who wears a mask, hood, covering, or disguise without lawful excuse and for the purpose of concealing his or her

identity in the course of a riot and commits any felony therein shall, upon conviction, be guilty of a Class D3 felony offense punishable by imprisonment in the custody of the Department of Corrections as provided for in subsections B through F of Section 20P of this title, or by both such fine and imprisonment; or

9. Every person who shall unlawfully obstruct the normal use of any public street, highway or road within this state by actively impeding, hindering or restraining motor vehicle traffic or passage thereon, by standing or approaching motor vehicles thereon, or by endangering the safe movement of motor vehicles or pedestrians traveling thereon shall, upon conviction, be guilty of a ~~misdemeanor~~ Class D3 felony offense punishable by imprisonment in the county jail custody of the Department of Corrections for a term not exceeding one (1) year as provided for in subsections B through F of Section 20P of this title or by a fine of not less than One Hundred Dollars (\$100.00) and not exceeding Five Thousand Dollars (\$5,000.00), or by both such fine and imprisonment. In addition, the person shall be liable for all damages to person or property by reason of the same. As used in this paragraph, "obstruct" means to render impassable or to render passage unreasonably inconvenient or hazardous.

In all other cases such person is punishable as for a misdemeanor.

SECTION 2. AMENDATORY 51 O.S. 2021, Section 155, as amended by Section 21, Chapter 228, O.S.L. 2022 (51 O.S. Supp. 2025, Section 155), is amended to read as follows:

Section 155. The state or a political subdivision shall not be liable if a loss or claim results from:

1. Legislative functions;
2. Judicial, quasi-judicial, or prosecutorial functions, other than claims for wrongful criminal felony conviction resulting in imprisonment provided for in Section 154 of this title;
3. Execution or enforcement of the lawful orders of any court;
4. Adoption or enforcement of or failure to adopt or enforce a law, whether valid or invalid, including, but not limited to, any statute, charter provision, ordinance, resolution, rule, regulation or written policy;

5. Performance of or the failure to exercise or perform any act or service which is in the discretion of the state or political subdivision or its employees;

6. Civil disobedience, riot, insurrection or rebellion or the failure to provide, or the method of providing, police, law enforcement or fire protection, unless the loss or claim results from instances where the state or political subdivision was aware of the dangerous condition and makes an affirmative decision or establishes a policy to allow for civil disobedience, riot, insurrection, or rebellion;

7. Any claim based on the theory of attractive nuisance;

8. Snow or ice conditions or temporary or natural conditions on any public way or other public place due to weather conditions, unless the condition is affirmatively caused by the negligent act of the state or a political subdivision;

9. Entry upon any property where that entry is expressly or implied authorized by law;

10. Natural conditions of property of the state or political subdivision;

11. Assessment or collection of taxes or special assessments, license or registration fees, or other fees or charges imposed by law;

12. Licensing powers or functions including, but not limited to, the issuance, denial, suspension or revocation of or failure or refusal to issue, deny, suspend or revoke any permit, license, certificate, approval, order or similar authority;

13. Inspection powers or functions, including failure to make an inspection, review or approval, or making an inadequate or negligent inspection, review or approval of any property, real or personal, to determine whether the property complies with or violates any law or contains a hazard to health or safety, or fails to conform to a recognized standard;

14. Any loss to any person covered by any workers' compensation act or any employer's liability act;

15. Absence, condition, location or malfunction of any traffic or road sign, signal or warning device unless the absence, condition, location or malfunction is not corrected by the state or political subdivision responsible within a reasonable time after actual or constructive notice or the removal or destruction of such signs, signals or warning devices by third parties, action of weather elements or as a result of traffic collision except on failure of the state or political subdivision to correct the same within a reasonable time after actual or constructive notice. Nothing herein shall give rise to liability arising from the failure of the state or any political subdivision to initially place any of the above signs, signals or warning devices. The signs, signals and warning devices referred to herein are those used in connection with hazards normally connected with the use of roadways or public ways and do not apply to the duty to warn of special defects such as excavations or roadway obstructions;

16. Any claim which is limited or barred by any other law;

17. Misrepresentation, if unintentional;

18. An act or omission of an independent contractor or consultant or his or her employees, agents, subcontractors or suppliers or of a person other than an employee of the state or political subdivision at the time the act or omission occurred;

19. Theft by a third person of money in the custody of an employee unless the loss was sustained because of the negligence or wrongful act or omission of the employee;

20. Participation in or practice for any interscholastic or other athletic contest sponsored or conducted by or on the property of the state or a political subdivision;

21. Participation in any activity approved by a local board of education and held within a building or on the grounds of the school district served by that local board of education before or after normal school hours or on weekends;

22. Use of indoor or outdoor school property and facilities made available for public recreation before or after normal school hours or on weekends or school vacations, except those claims resulting from willful and wanton acts of negligence. For purposes of this paragraph:

- a. "public" includes, but is not limited to, students during nonschool hours and school staff when not working as employees of the school, and
- b. "recreation" means any indoor or outdoor physical activity, either organized or unorganized, undertaken for exercise, relaxation, diversion, sport or pleasure, and that is not otherwise covered by paragraph 20 or 21 of this section;

23. Any court-ordered, Department of Corrections or county approved work release program; provided, however, this provision shall not apply to claims from individuals not in the custody of the Department of Corrections based on accidents involving motor vehicles owned or operated by the Department of Corrections;

24. The activities of the state military forces when on state active duty orders or on Title 32 active duty orders;

25. Provision, equipping, operation or maintenance of any prison, jail or correctional facility, or injuries resulting from the parole or escape of a prisoner or injuries by a prisoner to any other prisoner; provided, however, this provision shall not apply to claims from individuals not in the custody of the Department of Corrections based on accidents involving motor vehicles owned or operated by the Department of Corrections;

26. Provision, equipping, operation or maintenance of any juvenile detention facility, or injuries resulting from the escape of a juvenile detainee, or injuries by a juvenile detainee to any other juvenile detainee;

27. Any claim or action based on the theory of manufacturer's products liability or breach of warranty, either expressed or implied;

28. Any claim or action based on the theory of indemnification or subrogation; provided, however, a political subdivision as defined in ~~subparagraphs of paragraph 11~~ 12 of Section 152 of this title may enter into a contract with a contract operator or any railroad operating in interstate commerce that sells a property interest or provides services to a regional transportation authority, or allows the regional transportation authority to use the railroad's property or tracks for the provision of public passenger rail service, providing for the allocation of financial

responsibility, indemnification, or the procurement of insurance for the parties for all types of claims or damages, provided that funds have been appropriated to cover the resulting contractual obligation at the time the contract is executed. The acquisition of commercial liability insurance to cover the activities of the regional transportation authority, contract operator or railroad shall not operate as a waiver of any of the liabilities, immunities or defenses provided for political subdivisions pursuant to the provisions of The Governmental Tort Claims Act. A contract entered into under this paragraph shall not affect rights of employees under the Federal Employers Liability Act or the Federal Railway Labor Act;

29. Any claim based upon an act or omission of an employee in the placement of children;

30. Acts or omissions done in conformance with then current recognized standards;

31. Maintenance of the state highway system or any portion thereof unless the claimant presents evidence which establishes either that the state failed to warn of the unsafe condition or that the loss would not have occurred but for a negligent affirmative act of the state;

32. Any confirmation of the existence or nonexistence of any effective financing statement on file in the ~~office~~ Office of the Secretary of State made in good faith by an employee of the ~~office~~ Office of the Secretary of State as required by the provisions of Section 1-9-320.6 of Title 12A of the Oklahoma Statutes;

33. Any court-ordered community sentence;

34. Remedial action and any subsequent related maintenance of property pursuant to and in compliance with an authorized environmental remediation program, order, or requirement of a federal or state environmental agency;

35. The use of necessary and reasonable force by a school district employee to control and discipline a student during the time the student is in attendance or in transit to and from the school, or any other function authorized by the school district;

36. Actions taken in good faith by a school district employee for the out-of-school suspension of a student pursuant to applicable Oklahoma Statutes; or

37. Use of a public facility opened to the general public during an emergency.

SECTION 3. This act shall become effective November 1, 2026.

Passed the House of Representatives the 6th day of May, 2026.

Presiding Officer of the House
of Representatives

Passed the Senate the 27th day of April, 2026.

Presiding Officer of the Senate

OFFICE OF THE GOVERNOR

Received by the Office of the Governor this _____

day of _____, 20_____, at _____ o'clock _____ M.

By: _____

Approved by the Governor of the State of Oklahoma this _____

day of _____, 20_____, at _____ o'clock _____ M.

Governor of the State of Oklahoma

OFFICE OF THE SECRETARY OF STATE

Received by the Office of the Secretary of State this _____

day of _____, 20_____, at _____ o'clock _____ M.

By: _____